

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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KALEEMAH ROZIER, C.S., an infant by his Mother
and Natural Guardian, KALEEMAH ROZIER and
KALEEMAH ROZIER, individually,

Plaintiffs designate Kings
County as the place of trial

Plaintiffs,

Basis of the venue is the Locus
of Occurrence

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
ELARIA HALL-Shield No. 17187 and JOHN AND
JANE DOES-Police Officers as yet unidentified,

Plaintiffs reside at
594 Bushwick Avenue, Apt. # 315
Brooklyn, New York 11206

Defendants.

County of Kings

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER ELARIA HALL-Shield No.
17187
c/o New York City Police Department- Transit
District 32
950 Carroll Street
Brooklyn, New York 11235

Dated: Brooklyn, New York
March 24, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KALEEMAH ROZIER, C.S., an infant by his Mother
and Natural Guardian, KALEEMAH ROZIER and
KALEEMAH ROZIER, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
ELARIA HALL-Shield No. 17187 and JOHN AND
JANE DOES-Police Officers as yet unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF KALEEMAH ROZIER**

1. That at all times hereinafter mentioned, the plaintiffs were and still are residents of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 18, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the plaintiffs were held on August 20, 2020.

6. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the plaintiff, KALEEMAH ROZIER, was lawfully present at or about the Atlantic Avenue/ Barclays Center Subway Station, more specifically the platform that serves the D/N/R trains, in the County of Kings, City and State of New York.

8. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, KALEEMAH ROZIER, was approached and was assaulted and battered by the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed, had her son, the infant plaintiff, C.S., pulled away from her, pushed in the back of her head and neck causing her to fall to the ground, had her arm pulled and twisted, had a knee pressed in the back of her neck and forcefully placed in handcuffs. The plaintiff was taken to a police precinct and was held for approximately four (4) hours in a holding cell until she was issued a desk appearance ticket on the same day.

9. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, plaintiff, KALEEMAH ROZIER, was assaulted and battered by defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, KALEEMAH ROZIER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF KALEEMAH ROZIER**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, KALEEMAH ROZIER.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER ELARIA

HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF KALEEMAH ROZIER**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, KALEEMAH ROZIER.

21. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the plaintiff, KALEEMAH ROZIER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF KALEEMAH ROZIER**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "23" inclusive with the same force and effect as if more fully set forth at

length herein.

25. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, KALEEMAH ROZIER.

26. That the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff, KALEEMAH ROZIER, against her will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF KALEEMAH ROZIER**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, KALEEMAH ROZIER.

31. That as a result of said intentional and negligent acts, the plaintiff, KALEEMAH ROZIER, become sick, sore, lame and disabled, received severe and serious injuries in and about

diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF KALEEMAH ROZIER**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, defendants, JOHN POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, KALEEMAH ROZIER.

36. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, the plaintiff, KALEEMAH ROZIER, sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Court.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF KALEEMAH ROZIER**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, KALEEMAH ROZIER.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, KALEEMAH ROZIER, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF KALEEMAH ROZIER**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, KALEEMAH ROZIER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT BATTERY
AND PSYCHOLOGICAL INJURY ON BEHALF OF C.S., AN INFANT BY
HIS MOTHER AND NATURAL GUARDIAN, KALEEMAH ROZIER**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. That prior hereto on June 18, 2020, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than

(30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

51. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, C.S., was lawfully present at or about the Atlantic Avenue/Barclay Center Subway Station, more specifically the platform that serves the D/N/R trains, in the County of Kings, City and State of New York.

52. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the infant plaintiff, C.S., was approached and was pulled away from his mother, the plaintiff, KALEEMAH ROZIER, as he was witnessing his mother being assaulted, battered, falsely arrested and taken to a police precinct. As said infant plaintiff was separated by his mother, he too was taken to the police precinct and was held until he was picked up by his father while his mother was placed in a holding cell until her release later on that day.

53. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, C.S., witnessed said assault, battery and false arrest of his mother and was within the zone of danger of said occurrence.

54. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, infant plaintiff, C.S., was assaulted, battered and psychological injured by defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

55. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

56. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned

assault and battery upon the infant plaintiff, C.S., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

57. That on May 13, 2020, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the infant plaintiff, C.S., was without probable cause and was not the result of an appropriate arrest.

58. By reason of said assault, battery and psychological injury the infant plaintiff, C.S., was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

59. By the reason of the foregoing, the infant plaintiff, C.S., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF C.S., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, KALEEMAH ROZIER**

60. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered, psychological injured and violated the civil rights of the infant plaintiff, C.S.

62. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

63. By the reason of the foregoing, the infant plaintiff, C.S., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON BEHALF C.S., AN INFANT BY HIS MOTHER AND NATURAL GUARDIAN, KALEEMAH ROZIER

64. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "63" inclusive with the same force and effect as if more fully set forth at length herein.

65. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

66. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, C.S.

67. That as a result of said intentional and negligent acts, the infant plaintiff, C.S., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

68. By reason of the foregoing, the infant plaintiff, C.S., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A TWELFTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION ON BEHALF OF C.S., AN INFANT BY HIS MOTHER AND NATURAL GUARDIAN, KALEEMAH ROZIER

69. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "68" inclusive with the same force and effect as if more fully set forth at length herein.

70. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, C.S.

71. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

72. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

73. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

74. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER ELARIA HALL-Shield No.17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

75. As a direct and proximate result of this unlawful conduct, the infant plaintiff, C.S., sustained the damages hereinbefore alleged.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF C.S., AN INFANT BY HIS
MOTHER AND NATURAL GUARDIAN, KALEEMAH ROZIER**

76. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "75" inclusive with the same force and effect as if more fully set forth at length herein.

77. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

78. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER ELARIA HALL-Shield No. 17187 and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

79. By the reason of the foregoing, the infant plaintiff, C.S., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR LOSS
OF SERVICES ON BEHALF OF KALEEMAH ROZIER, AS
MOTHER AND NATURAL GUARDIAN OF THE INFANT, S.H.**

80. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "79" inclusive with the same force and effect as if more fully set forth at length herein.

81. That at all times hereinafter mentioned, the plaintiff, KALEEMAH ROZIER, was the lawful Mother and Natural Guardian of the infant plaintiff, C.S., and as such said plaintiff, KALEEMAH ROZIER, was entitled to the society and services of said infant plaintiff, C.S.

82. By reason of the afore-described negligence of defendants, the plaintiff, KALEEMAH ROZIER, was deprived of the society and services of the infant plaintiff, C.S., and shall forever be deprived of said society and services.

83. As a result of herein above, plaintiff, KALEEMAH ROZIER, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, C.S.

84. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, KALEEMAH ROZIER, has been damaged in a sum exceeding the jurisdictional limits

of all lower Courts.

WHEREFORE, plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, C.S., an infant by his Mother and Natural Guardian, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Ninth Cause** of Action; plaintiff, C.S., an infant by his Mother and Natural Guardian, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Tenth Cause** of Action; plaintiff, C.S., an infant by his Mother and Natural Guardian, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Eleventh Cause** of Action; plaintiff, C.S., an infant by his Mother and Natural Guardian, KALEEMAH ROZIER,

demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Twelfth Cause** of Action; plaintiff, C.S., an infant by his Mother and Natural Guardian, KALEEMAH ROZIER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Thirteenth Cause** of Action; plaintiff, KALEEMAH ROZIER, Mother and Natural Guardian of the infant plaintiff, C.S., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, on the **Fourteenth Cause** of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
March 24, 2021

Yours, etc.,



ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 20KR05-13

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

KALEEMAH ROZIER, being duly sworn, deposes and says, that deponent is the Mother and Natural Guardian of the plaintiff, C.S., in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


KALEEMAH ROZIER

Sworn to before me this 14th
of April 2021


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

KALEEMAH ROZIER, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


KALEEMAH ROZIER

Sworn to before me this 14th
of April 2021


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 23